

Justification for Other Than Full and Open Competition

ERM-RMIC: Operational Reporting Categories Support Services [Redacted]

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Agency: DHRA, 4800 Mark Center Dr, Alexandria, VA 22350

Contracting Activity: DHRA Comptroller, Acquisition Management Division (AMD), 4800 Mark Center Dr, Alexandria, VA 22350

I. Nature and/or description of the action being processed.

The Defense Human Resource Activity (DHRA) Acquisition Management Division (AMD) intends to procure, without using full and open competition, an additionally two-months on the existing four-month extension modification for the Operational Reporting Categories Support Services contract (ERM RMIC) H98210-23-C-0003, the contractor is GenTech Associates.

The contract's period of performance (PoP) ends March 24, 2026. The requested extension will be for two months from the period of performance (POP) end date.

II. Description of supplies/services required to meet agency needs (including the estimated value).

The Defense Human Resources Activity/Headquarters Comptroller Enterprise Risk Management (ERM) requires contract support in the area of Risk Management and Internal Controls (RMIC) for operational, business systems and internal controls, to include testing and validation of complete end to end operational processes and procedures. This requires strategic program management for ERM improvement initiatives that are currently being conducted across the DHRA enterprise to ensure DHRA has established robust accountability, risk management, and financial reporting within its ERM Program that encompasses all Centers and Offices and crosses numerous functional programs including service provider interface and coordination.

Risk Management and Internal Controls (RMIC) requirements as required by the DoD Instruction 5010.40 (Reference (a)), "The Federal Managers' Financial Integrity Act (FMFIA)" (Reference (b)), and Office of Management and Budget (OMB) Circular No. A-123, Management's Responsibility for Enterprise Risk Management and Internal Control (Reference (c)).

The services assist in identifying, assessing and mitigating risk and risk management practices.

They include:

- Drafting or updating nineteen DHRA risk and compliance publications that specify the ERM Program's policy and procedures.
- Coordinating working groups to mature these publications and train the DHRA workforce.
- Providing risk management expertise and advice in support of DHRA, including its centers/offices, to assess and mitigate risks through ELC.
- Identifying and providing recommended courses of action to resolve weaknesses in existing financial and operational business practices.
- Assisting DHRA Centers with the development and implementation of corrective action plans (CAPs).
- Providing support to DHRA centers/offices efforts to improve the fidelity of asset accountability.

The estimated cost of the extension is [REDACTED]

III. Statutory authority permitting Other than Full and Open Competition.

The statutory authority for this non-competitive action is:

6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

6.302-5 -- Authorized or Required by Statute.

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IV. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above (applicability of authority).

Authority is pursuant to 10 U.S.C. 3204(a)(1) as implemented by FAR 6.302-1, Only One Responsible Source, 10 U.S.C. 3204(a)(5) Authorized or Required by Statute, and in accordance with FAR clause 52.217-8, "Option to Extend Services" as incorporated into the subject contract.

The requirement is only achievable by the incumbent GenTech Associates Inc. and no other contractor could satisfy this requirement due to the Government's need to prevent service disruption. Inability to extend this contract utilizing the incumbent will place the ERMIC support services at high risk for service disruption during a critical time of reporting and prevent continuation of mission critical support services. The intent of this extension is to provide for the continuation of support services beyond March 24, 2026, to ensure no disruption of services and a smooth transition from the contract's period of performance ending in the second quarter of the fiscal year to the third quarter. The requested two-month extension for the contract also provides further acquisition development time for the follow-on contract.

In addition, authority is pursuant to 10 U.S.C. 3204(a)(5) Authorized or Required by Statute this requirement was procured under the 8(a) program. This extension will fall under the current terms of the 8(a) program.

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

The follow-on effort is currently underway, and market research is being finalized.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The anticipated cost/price of this contract action to the Government will be based on the pricing in the current contract's final year. Authority is pursuant to 10 U.S.C. 3204(a)(1) as implemented by FAR 6.302-1, Only One Responsible Source, 10 U.S.C. 3204(a)(5) Authorized or Required by Statute, and in accordance with FAR clause 52.217-8, "Option to Extend Services" as incorporated into the subject contract. This requirement is only achievable by the incumbent and no other contractor can satisfy this requirement. As such, the pricing will be fair and reasonable, as it will be based on pricing already established in the contract and previously determined fair and reasonable by DHRA through price/cost analysis.

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

No market research will be conducted for this extension. As previously mentioned, this request is being made to provide an additional two-months on the existing four-month extension to accommodate the Government's need to have uninterrupted service for ERMIC requirements. An attempt to solicit a new performer for the extension other than the incumbent would duplicate efforts, greatly increase costs, and lead to a critical risk of being unable to complete mission requirements. Therefore, no alternate sources were advised of this requirement. Market research is currently being finalized for the follow-on effort.

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

N/A

IX. List of sources, if any, that expressed interest in the acquisition.



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N/A

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required.

A follow-on effort is currently being planned. Market research is currently being finalized for the acquisition.

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I have determined this document to be both accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.